

The M.P. Krishik Pashu Parirakshan Rules, 1959

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State of Madhya Pradesh - Act

The M.P. Krishik Pashu Parirakshan Rules, 1959

MADHYA PRADESH

India

The M.P. Krishik Pashu Parirakshan Rules, 1959

Rule THE-M-P-KRISHIK-PASHU-PARIRAKSHAN-RULES-1959 of 1959

Published on 4 January 1960

Commenced on 4 January 1960

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The M.P. Krishik Pashu Parirakshan Rules, 1959

Published vide Notification No. 47-2591-14-Vety.-59, dated 4-1-1960, M.P. Rajpatra (Asadharan), dated 9-1-1960 at page 3

In exercise of the powers conferred by Section 18 of the Madhya Pradesh Agricultural Cattle Preservation Act, 1959 (No. XVIII of 1959) and in supersession of all previous rules made on the subject, the State Government hereby makes the following rules, namely :

1.

These rules may be called the Madhya Pradesh Agricultural Cattle Preservation Rules, 1959.

2.

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Madhya Pradesh Agricultural Cattle Preservation Act, 1959 (No. 18 of 1959

);

(b)

"Form" means a form appended to these rules;

(c)

"Section" means a section of the Act.

3.

[

[Substituted by Notification No. 160-4859-XIV-Vety., dated 9-1-1963.]

(a)

An application for a certificate under Section 4 shall be made by a person to the Competent Authority in Form I which may be obtained from the Competent Authority. Such application shall be accompanied by a treasury challan in token of having deposited the fee prescribed under clause (b) into the Government treasury.

(b)

The fee under clause (a) above shall be rupees three per head of cattle for which permission for slaughter is sought. The fee shall be credited into the nearest Government Treasury under the head XXVII-Animal Husbandry-B-other receipt-(2) Fees and other receipt.]

4.

On receipt of the application under Rule 3 the Competent Authority shall by order direct the person keeping the agricultural cattle to submit such cattle for examination by the Veterinary Officer and thereupon it shall be the duty of the person keeping such cattle to submit it for examination accordingly and render all reasonable assistance in connection with such examination.

5.

If on such examination of the cattle the Veterinary Officer is satisfied that-

(a)

[the cattle is-

[Substituted by Notification No. 5704-3830-XIV-Vety., dated 19-8-1961.]

(a)

over fifteen years of age;

(ii)

has become permanently incapacitated for work or breeding due to injury, deformity or an incurable disease, and such permanent incapacity has not been caused deliberately; and]

(b)

the cattle is not suffering from any disease which makes its meat unwholesome for human consumption; he shall certify the cattle accordingly and cause it to be branded with a letter "C" on one of its cheeks.

6.

The Veterinary Officer shall issue a certificate of examination of the cattle in Form II and send it to the Competent Authority.

7.

[(i)]

[Re-numbered as Rule 7(i) by Notification No. 5109-4191-XIV-Vety.]

On receipt of the certificate of examination from the Veterinary Officer the Competent Authority may, after considering the matter, issue a certificate in Form III or refuse to issue such certificate.

(ii)

[The Competent Authority shall arrange to take back the certificate issued by it in Form in under Rule 7(i) within 24 hours of the slaughter of the cattle for which the certificate was issued and shall cancel it by a rubber stamp bearing the mark "Cancelled" thereon and duly signed by the Competent Authority.]

[Inserted by Notification No. 5109-4191-XIV-Vety.]

8.

(1)

In any area in which there is no place fixed for slaughter by or under law relating to local authority in force, the Competent Authority shall fix a place at which the cattle may be slaughtered under the Act.

(2)

In fixing the place for slaughter, the Competent Authority shall give due regard to the sanitary conditions of the locality and the susceptibilities of the residents thereof, and see that the place is such where the slaughter of the cattle shall not be open to public gaze.

Form I

(See Rule 3)

[As amended]

To

The Competent Authority

I the resident of.....Tahsil.....District.....request for issue of certificate under clause (b) of sub-section (1) Section 4 of the Madhya Pradesh Agricultural Cattle Preservation Act, 1959, for slaughter of the agricultural cattle as specified below :

The treasury challan in token of having deposited a fee of rupees three per head of cattle is enclosed.

Description

Kind of cattle

Bull Bullock

Female buffalo

Male buffalo

Date.....

.....

Address.....

Signature of applicant

Form II

(See Rule 6)

[As amended]

Certificate of Examination of an Agricultural Cattle

No.....

Dated, the.....19.....

I have examined today at.....the agricultural cattle described below the property of Shri.....and hereby certify that-

(a)

the cattle is/is not over fifteen years of age or has/has not become permanently incapacitated for work or breeding due to injury, deformity or an incurable disease, and such permanent incapacity has/has not been caused deliberately; and

(b)

the cattle is/is not suffering from any disease which makes its meat unwholesome for human consumption.

Description of the cattle

1. Kind of cattle

2. Sex

3. Age

4. Description

.....Signature of the Veterinary Officer

Form III

(See Rule 7)

[As amended]

Certificate of the cattle being fit for slaughter

No..... Date..... Month..... Year.....

Certified that the cattle described below the property of Shri.....son of.....Tahsil.....District.....is fit for slaughter :

1. Kind of cattle

2. Sex

3. Age

4. Description

Place where the cattle is allowed to be slaughtered under clause (ii) of Section 5 of the Madhya Pradesh Agricultural Cattle Preservation Act, 1959. The certificate shall be valid for ten days from the date of its issue.

Competent Authority.

It shall be returned to the Competent Authority for cancellation within 24 hours of the slaughter of the cattle for which it was issued.

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